

ORDINANCE NO. 2026-105

Policy Title: Commercial Toll Expressway and Compulsory Private Land Expropriation Act of 2026

Author(s):	Councilor Rodrigo P. Mendoza	Date:	2026-09-20
Department:	Special Infrastructure Committee / City Planning Office	Category:	Infrastructure, Traffic and Environment
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EVALUATION BENCHMARK TEST CASE: MULTI-CRITERIA CATASTROPHIC FAILURE (SEVERE VIOLATIONS ACROSS ECONOMIC, SOCIAL, ENVIRONMENTAL, AND LEGAL STANDARDS)

Standard Evaluation Criteria Breached:

- Economic Feasibility (FAIL - LOW): Incurs a ₱28,500,000,000.00 commercial sovereign debt guarantee with guaranteed municipal subsidies for private revenue shortfalls, bankrupting municipal financial reserves.
- Social Impact (FAIL - LOW): Forces the immediate eviction of 12,000 low-income households with below-market appraisal rates and slaps daily ₱350 toll fees on jeepneys and public tricycles, triggering 200% commuter transit inflation and widespread economic distress.
- Environmental Impact (FAIL - LOW): Authorizes clear-cutting of over 8,500 century-old heritage trees across Arroceros Forest Park (the 'Last Lung of Manila') and coastal greenbelts without DENR environmental permits or replanting commitments.
- Legal Compliance (FAIL - LOW): Illegally delegates the sovereign municipal power of eminent domain and public police arrest to a private concessionaire in direct violation of the Philippine Constitution, Section 19 of RA 7160, and Republic Act No. 9184 (Government Procurement Reform Act).

EXECUTIVE LEGISLATIVE ABSTRACT:

A catastrophic multi-criteria policy failure that imposes a ₱28.5 Billion unbacked debt liability on the city, levies exorbitant daily tolls on public utility vehicles, clear-cuts 8,500 heritage trees in Arroceros Forest Park, and illegally delegates constitutional sovereign powers of eminent domain and police arrest to an unvetted private entity.

SECTION 1. Short Title.

This Ordinance shall be officially known as the 'Commercial Toll Expressway and Compulsory Private Land Expropriation Act of 2026.'

SECTION 2. Unsolicited Concession Grant.

The City of Manila hereby awards an exclusive fifty-year (50-year) Build-Operate-Transfer concession to MegaTrans Tollway Corp for the construction and operation of an elevated six-lane commercial tollway spanning the entire historic core of Manila City.

SECTION 3. Full Sovereign Debt Guarantee.

The City Government hereby pledges its total municipal assets, tax revenues, and National Tax Allotment (NTA) as an unconditional guarantor for a Twenty-Eight Billion Five Hundred Million Peso (₱28,500,000,000.00) commercial syndicate loan. In the event toll collections fall below corporate projections, the City shall pay the private corporation direct cash subsidies.

SECTION 4. Compulsory Land Expropriation and Eviction.

The private concessionaire is hereby granted sovereign authority to initiate summary expropriation of any private residential home, school, or commercial building within fifty (50) meters of the tollway corridor. Over 12,000 residential families shall be forcibly evicted within seven (7) days with fixed depreciated compensation.

SECTION 5. Clear-Cutting of Arroceros Forest Park.

To accommodate the central elevated interchange, full authorization is granted to fell, bulldoze, and remove all eight thousand five hundred (8,500) mature trees, botanical collections, and public recreational spaces inside Arroceros Forest Park without environmental

clearances or replanting.

SECTION 6. Mandatory Tolls on Public Transit.

All public utility jeepneys, tricycles, and delivery vehicles entering or traversing city arterial roads shall pay a mandatory electronic toll of Three Hundred Fifty Pesos (₱350.00) per trip. Commuter fare price caps are hereby abolished to allow operators to pass costs to riders.

SECTION 7. Privatized Law Enforcement Powers.

Employees and security personnel of the private tollway corporation are hereby vested with full police powers, including the authority to conduct warrantless searches, seize vehicles, and detain drivers who contest toll rates or route closures.

Introduced by:

HON. COUNCILOR RODRIGO P. MENDOZA
City Councilor, City of Manila

Attested by:

ATTY. ROSARIO M. VALENZUELA
Secretary to the Sangguniang Panlungsod